The PROTECT Act: What to Know

Fact Sheet · October 2026

A new Massachusetts law about immigration. Some parts of the law have already started. More parts start on November 3. This sheet is general information, not legal advice.

Aug. 5
Law signed. Job and child care rules start.

Sept. 4
Police and court rules start.

Nov. 3
Courthouse, jail, and U / T visa rules start.

1 Can local police ask about my status?

- **SINCE SEPT. 4** Usually **no**. Most MA police and court workers can't ask or write it down.
- There are some exceptions.
- This rule is for police and courts, **not** every job or school.

You can: Something happened with police? A lawyer can help you understand it.

2 Can ICE arrest someone at court?

- **FROM NOV. 3** At a MA courthouse, ICE needs a **judge's** warrant or order.
- No immigration arrests **inside a courtroom**.
- This does not mean court is always safe. An ICE warrant is different from a judge's warrant.

You can: Worried about a court date? It is a good idea to talk to your lawyer before it.

3 My family member was detained or moved.

- It helps to call their lawyer or legal help as soon as you can.
- **FROM NOV. 3** Some MA jails must update records within **6 hours**, and try to tell the lawyer and family within 6 hours of a move.
- Not every holding place must do this.

4 Will I know if ICE checks records at my job?

- **SINCE AUG. 5** Usually **yes**. Your employer must tell **every worker** in writing within **48 hours** after ICE tells the employer about an inspection.
- This is for I-9 forms and other work records.

You can: Get help from a workers' group or lawyer. It is best to talk to a lawyer before you change or give any documents.

5 My boss or landlord threatened me.

- A lawyer can tell you if a **U visa** or **T visa** could help you. These visas are for some victims of crimes or trafficking.
- Unpaid wages or bad housing don't **automatically** count.
- FROM NOV. 3 MA agencies must answer faster when you ask for a visa support form. (The form is not the visa.)

You can: Ask your teacher for a private talk. Your teacher can help you find a lawyer.

6 Who can care for my child in an emergency?

- **Caregiver form** (caregiver authorization affidavit): a trusted adult makes school and health decisions. No court. **You are still the parent.**
- **Standby guardian:** a different plan. It goes through court.
- Many families don't need both.

You can: Read the family plan guide below. A lawyer can help you choose.

7 An officer is not following this law.

- The MA Attorney General's office takes complaints.

You can: Write down the date, time, and place. Keep any papers. Talk to your teacher if you want help reporting it.

Where to get help

Scan with your phone. MIRA has **English, Spanish, Haitian Creole, and Portuguese**.

About the law
MIRA, 4 languages
miracoalition.org/resources/the-protect-act-8-5-2026

Find a lawyer
MIRA legal services list
miracoalition.org/resources/legal-services

Know your rights
MIRA
miracoalition.org/resources/know-your-rights

Family emergency plan
MassLegalHelp
masslegalhelp.org/immigration/know-your-rights/planning-family-emergency